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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

Date of Decision: 30.01.2025

+ **RC.REV. 618/2018, CM APPL. 53090/2018, CM APPL. 6700/2022**
RAWEL SINGH & ANRPetitioners

Through: Mr. Varun Singh, Ms. Ramneek Kaur,
Mr. Janmejay Pratap Singh, Ms.
Kanchan, Advs.

versus

VINOD KUMAR JAINRespondent
Through: Mr. Shafiq Khan, Advs.

CORAM:

HON'BLE MS. JUSTICE TARA VITASTA GANJU

TARA VITASTA GANJU, J.: (Oral)

1. Petitioner No.1, who is also the brother of Petitioner No.2, is physically present in the Court today.

1.1 Respondent is also physically present in the Court today.

2. Learned Counsel for the Respondent/landlord submits that a Coordinate Bench of this Court by its order dated 11.12.2023 had affixed interim user and occupation charges to be paid by the Petitioners/tenants, at the rate of 15,000/-, however, no user and occupation charges have been paid since that date.

2.1 Learned Counsel for the Respondent/landlord, on instructions, further submits that in the event the Petitioners/tenants are unable to make payment of user and occupation charges, the Respondent/landlord is agreeable to

waive the user and occupation charges affixed by the Court, subject to vacation of the subject premises by the Petitioners/tenants in a short period of time.

3. Learned Counsel for the Petitioners/tenants, on instructions, submits that the Petitioners/tenants may be granted time upto 31.08.2025 to vacate the subject premises.

4. In view thereof and with the consensus among the parties, let an Undertaking by way of an Affidavit be filed by the Petitioners/tenants within a period of ten days, undertaking that:

(i) The Petitioners/tenants shall hand over the vacant physical possession of the premises i.e., two rooms and space/passage and shutter on the first floor of property no. 2371/9, Gall Pahiye Wall, Teliwara, Sadar Bazar, Delhi-110006 as shown in green colour in the site plan annexed with the Eviction Petition filed [hereinafter referred to as “subject premises”];

(ii) The vacant, physical and peaceful possession of the subject premises will be handed over by the Petitioners/tenants to the Respondent/landlord on or before 31.08.2025;

(iii) The Petitioners/tenants undertake and confirm that the entire subject premises is under their occupation and control;

(iv) The Petitioners/tenants will pay all the utility bills such as electricity and water and any other dues, for the subject premises till the date of handing over of the vacant, physical and peaceful possession thereof;

(v) The Petitioners/tenants undertake that they will not create any third-party rights or part with possession of the subject premises and that he shall not damage the subject premises in any manner whatsoever prior to its

vacation;

(vi) The Petitioners/tenants shall remain bound by the aforesaid Undertaking.

5. An advance copy of the Undertaking shall be served on the Respondent/landlord.

6. In the event that the Petitioners/tenants default in complying with the terms of the Undertaking filed, the interim protection granted by this Court on 28.02.2019 shall automatically stand dissolved and Respondent/landlord will be at liberty to take recourse to appropriate proceedings for recovery of possession and for recovery of the use and occupation charges from the Petitioners/tenants as agreed, in accordance with law.

7. The present Petition is disposed of, in the foregoing terms. Pending Applications stand closed.

8. List the matter for compliance on 13.02.2025 in the Supplementary List.

9. The parties shall act based on the digitally signed copy of the order.

TARA VITASTA GANJU, J

JANUARY 30, 2025/jn

[Click here to check corrigendum, if any](#)